

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4309

By: Pae

AS INTRODUCED

An Act relating to amusements and sports; enacting the Electronic Pull-Tab Device Act; requiring approval by Alcoholic Beverage Laws Enforcement Commission; prohibiting electronic pull-tab device from being used for certain games; permitting electronic pull-tab device to include certain characteristics; requiring that each electronic pull-tab device include memory; directing that memory be maintained in secure location; prohibiting electronic pull-tab device from having any means of manipulation that could affect operation or outcome of game; prohibiting electronic pull-tab device from having certain attributes; directing that electronic pull-tab device be able to withstand forced illegal entry; setting limit of the number of electronic pull-tab device present on premises; directing ABLE Commission to promulgate rules; amending 3A O.S. 2021, Section 402, which relates to definitions; defining terms; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 451 of Title 3A, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Electronic Pull-Tab Device Act".

1 SECTION 2. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 452 of Title 3A, unless there is
3 created a duplication in numbering, reads as follows:

4 A. Each electronic pull-tab device shall bear a seal approved
5 by the Alcoholic Beverage Laws Enforcement (ABLE) Commission.

6 B. An electronic pull-tab device shall not be capable of being
7 used for the purpose of engaging in any game prohibited by the
8 Commission.

9 C. In addition to a video monitor or touch screen, each
10 electronic pull-tab device may include, but not be limited to, a
11 bill acceptor, printer, and electromechanical buttons for activating
12 the game and providing player input, including a means for the
13 player to make selections and choices in games.

14 D. For each electronic pull-tab device, there shall be located
15 anywhere within the distributed pull-tab system, nonvolatile memory
16 or its equivalent. The memory shall be maintained in a secure
17 location for the purpose of storing and preserving a set of critical
18 data that has been error-checked in accordance with the critical
19 memory requirements of this regulation.

20 E. An electronic pull-tab device shall not have any switches,
21 jumpers, wire posts, or other means of manipulation that could
22 affect the operation or outcome of a game. The electronic pull-tab
23 device may not have any functions or parameters adjustable through
24

1 any separate video display or input codes except for the adjustment
2 of features that are wholly cosmetic.

3 F. An electronic pull-tab device shall not have any of the
4 following attributes:

5 1. Spinning or mechanical reels;

6 2. Pull handle;

7 3. Sounds or music solely intended to entice a player to play;

8 4. Flashing lights or tower light;

9 5. Top box, coin tray, ticket acceptance, hopper, coin
10 acceptor;

11 6. Enhanced animation, cabinet, or payglass artwork; or

12 7. Any other attribute identified by the Commission.

13 G. An electronic pull-tab device shall be robust enough to
14 withstand forced illegal entry that would leave behind physical
15 evidence of the attempted entry or such entry that causes an error
16 code that is displayed and transmitted to the distributed pull-tab
17 system. Any such entry attempt shall inhibit game play until
18 cleared and shall not affect the subsequent play or any other play,
19 prize, or aspect of the game.

20 H. The number of electronic pull-tab devices, other than those
21 electronic pull-tab devices that are handheld, present at any
22 premises at which charitable gaming is conducted shall be limited to
23 ten devices. The Commission shall determine whether an electronic
24 pull-tab device is handheld.

1 I. The ABLE Commission shall promulgate rules necessary to
2 implement and enforce the provisions of the Electronic Pull-Tab
3 Device Act.

4 SECTION 3. AMENDATORY 3A O.S. 2021, Section 402, is
5 amended to read as follows:

6 Section 402. As used in the Oklahoma Charity Games Act, Section
7 401 et seq. of this title, and the Electronic Pull-Tab Device Act,
8 created in Section 1 of this act:

9 1. "Bingo" means a game in which each player receives a bingo
10 face and covers the squares according to the numbers, letters, or
11 combination of numbers and letters that have been announced by the
12 caller. The numbers and letters called are on an object selected at
13 random either manually or mechanically from a receptacle in which
14 have been placed the objects bearing the numbers, letters, or
15 combinations of numbers and letters corresponding to the system used
16 for designating the bingo face squares. The winner of each bingo
17 game is the player who first properly covers a predetermined and
18 announced pattern of squares upon the bingo face being used by the
19 player;

20 2. "Bingo face" means a flat piece of paper which is marked off
21 into any number of squares in any arrangement of rows, with each
22 square being designated by number, letter or combination of numbers
23 and letters and with one or more squares designated as a "free"
24 space with the word "Oklahoma" and a facsimile outline of a map of

1 Oklahoma in it, which cannot be reused after the game in which a
2 player has used it is over;

3 3. "Breakopen ticket card" means a single folded or banded
4 ticket or a card, the face of which is initially covered or
5 otherwise hidden from view to conceal a number, letter, symbol, or
6 set of letters or symbols, a few of which numbers, letters or
7 symbols out of every set of charity game tickets have been
8 designated in advance at random as prize winners and which is used
9 in a breakopen ticket game;

10 4. "Breakopen ticket game" means a game wherein a player
11 receives a breakopen ticket card. A breakopen ticket game shall
12 meet the following criteria:

- 13 a. the game shall be assembled so that no placement of
14 winners or losers exists that allows the possibility
15 of prize manipulation,
- 16 b. the concealed numbers, letters, or symbols shall not
17 be visible from the outside of the game using high
18 intensity lamps. Protection shall be provided by the
19 opaque paper stock employed, with the possible
20 addition of colors and printed blockout patterns or by
21 use of an aluminum foil laminate,
- 22 c. a unique symbol or printed security device, such as a
23 specific number keyed to particular winners or the
24 name of the symbol or some of the symbol colors

- 1 changed for a window, or other similar protection
2 shall be placed in the winning windows of prize
3 windows to ensure that the winner image is unique,
4 d. it shall not be possible to detect or pick out winning
5 from losing tickets through variations in printing
6 graphics, color, or use of different printing plates,
7 e. it shall not be possible to isolate winning or
8 potential winning tickets from minor variations in
9 size or cutting of the tickets comprising a particular
10 packet, and
11 f. each ticket in a game shall have a serial number. All
12 tickets in a game shall have the same serial number
13 appearing in a conspicuous place on the ticket;

14 5. "Business entity" means a person, company, corporation, or
15 partnership organized for profit;

16 6. "Charity game" means a bingo game, U-PIK-EM bingo game, or
17 breakopen ticket game conducted by an organization pursuant to the
18 provisions of the Oklahoma Charity Games Act;

19 7. "Charity game equipment" means any object uniquely designed
20 for use in the conducting of a charity game including, but not
21 limited to, bingo faces, U-PIK-EM bingo game sets, and breakopen
22 ticket cards. Items used in conducting charity games which are not
23 charity game equipment are ink markers, furniture and general
24 furnishings of rooms where charity games are conducted;

1 8. "Commission" or "ABLE Commission" means the Alcoholic
2 Beverage Laws Enforcement Commission;

3 9. "Day session" means the set time frame within which
4 conducting of charity games is authorized beginning no earlier than
5 10:00 a.m. and ending no later than 5:00 p.m.;

6 10. "Deal" means one series of breakopen ticket game cards
7 which has a stated number of winner payouts and a stated amount of
8 the payouts;

9 11. "Distributor" means a person or business entity that sells,
10 markets, or otherwise provides charity game equipment to an
11 organization;

12 12. "Doing business" means either conducting a charity game by
13 an organization or providing goods or services to an organization by
14 a business entity;

15 13. "Electronic pull-tab device" means an electronic device
16 that displays an instant result from a pull-tab game by utilizing a
17 touchscreen monitor. The device accumulates winnings for the player
18 and prints out a voucher at the conclusion of play that can be
19 redeemed for cash or credited to use on another electronic pull-tab
20 device for continued play;

21 ~~13.~~ 14. "Employee" means a person who works for compensation in
22 a licensed charity game establishment;

23 ~~14.~~ 15. "Immediate family member" means a spouse, parent, child
24 or sibling or spouse of a parent, child or sibling of a resident of

1 a facility exempt from specific provisions of the Oklahoma Charity
2 Games Act as provided in subsection C of Section 405 of this title;

3 ~~15.~~ 16. "Licensee" means any person, organization, or business
4 entity which has received a license from the Commission;

5 ~~16.~~ 17. "Location" means the building, including the individual
6 rooms and equipment in the rooms, grounds, and appurtenances,
7 including adjacent premises if subject to the direct or indirect
8 control of the organization while conducting a charity game, which
9 are used in connection with or in furtherance of the conducting of a
10 charity game;

11 ~~17.~~ 18. "Manager" means a person who:

- 12 a. is an employee of an organization,
- 13 b. has supervisory authority over other employees or over
14 the conduct of charity games, and
- 15 c. has been designated as such by the organization
16 pursuant to the provisions of subsection D of Section
17 408 of this title;

18 ~~18.~~ 19. "Manufacturer" means a person or business entity that
19 assembles from raw materials, supplies, or subparts to form a
20 completed series of charity game equipment for use in charity games
21 and that sells, markets, or otherwise provides such equipment to a
22 distributor;

1 ~~19.~~ 20. "Night session" means the set time frame within which
2 conducting of charity games is authorized beginning no earlier than
3 5:00 p.m. and ending no later than 12:00 ~~p.m.~~ a.m. midnight;

4 ~~20.~~ 21. "Organization" means a religious, charitable, labor,
5 fraternal, educational, or other type of association or any branch,
6 lodge, chapter, or auxiliary of such association which:

- 7 a. operates without profit to its members,
- 8 b. has been in existence and been operating as a
9 nonprofit organization for not less than two (2) years
10 prior to applying for an organization license,
- 11 c. is exempt from taxation pursuant to the provisions of
12 paragraphs (3), (4), (5), (6), (7), (8), (9), (10), or
13 (19) of subsection (c) of Section 501 or paragraph (1)
14 of subsection (a) of Section 509 of the United States
15 Internal Revenue Code of 1986, as amended, 26 U.S.C.,
16 Section 501(c) et seq. or Section 509(a)(1), and
- 17 d. formulates bylaws which clearly identify and
18 establish:
 - 19 (1) method of electing officers and their duties,
 - 20 (2) method by which members are elected, initiated or
21 admitted,
 - 22 (3) the rights and privileges of each member,
 - 23 (4) that each member has one vote, and

(5) that membership rights are personal to the member
and not assignable;

~~21.~~ 22. "Progressive game" means a game in which prizes are
allowed to be carried over and increased from session to session;

~~22.~~ 23. "U-PIK-EM bingo game" means a game played wherein a
player writes the numbers on a U-PIK-EM bingo game set. The player
retains one sheet of the set and deposits the second sheet in a
receptacle in the control of the organization. The player then
covers the numbers as the caller announces a number. The numbers
called are on an object selected at random either manually or
mechanically from a receptacle in which have been placed the objects
bearing the numbers. The winner of each U-PIK-EM bingo game is the
player who first covers all the numbers appearing on the retained
sheet in accordance with the pattern as designated on the sheet; and

~~23.~~ 24. "U-PIK-EM bingo game set" means two paper sheets of
carbonless paper both bearing identical serial numbers on which a
player writes numbers or letters, wherein one sheet is retained by
the player and used for playing and one sheet is held by the
organization and used for verifying winners.

SECTION 4. This act shall become effective November 1, 2026.

60-2-15646 CMA 12/12/25